

particular sequence"; the list of fragment lengths was actually **not independent** from the list of amino acid sequences. The combination of the value "20 or more consecutive amino acids" with the amino acid sequences SEQ ID NOs 4, 6, therefore only limited the original disclosure in the parent application. This limitation did not create new subject-matter.

T.119/15 distinguished its case from T.1511/07 (see the summary in point a) above), as it did not relate to lists within the meaning of T.1511/07. Similarly, in T.2695/16 the board did not accept the argument of the appellant that the combination of amendments resulted from a selection from two lists of compounds.

c) Disclosure of combination in an individualised manner – pointers

(i) Combination not individualised in the application as filed – examples

In the board's view in T.686/99 the application as filed disclosed in an undifferentiated way different categories of base oils without any pointer regarding the selection of one particular category thereof. Priority was not given to ester oils from the original host of equivalent base oils. Therefore the board came to the conclusion that combining in claim 1 a base oil mandatorily comprising ester oils with the hydrofluorocarbons listed in claim 1 resulted from a multiple selection within two lists of alternative features, namely of ester oils from the list of base oils and of hydrofluorocarbons from the list of refrigerants, thereby generating a fresh particular combination. In the **absence of any pointer to that particular combination**, this combined selection of features did not, for the person skilled in the art, emerge clearly and unambiguously from the content of the application as filed.

In T.714/08 claim 1 of the main request had been amended so as to limit the first oxidation base to paraphenylenediamine and the list of couplers to 12 compounds, but the specific combination of paraphenylenediamine with each of those couplers could not be derived directly and unambiguously from the application as filed. The board did not accept the argument that the application as filed had already individualised paraphenylenediamine as a preferred first oxidation base. In its view, the cited passage related solely to a specific example. The case differed from those concerning restrictions applied to lists of substituents in Markush-type chemical formulas (see T.615/95 or T.50/97; see the abstracts in this chapter II.E.1.6.3 below); the restrictions there had not resulted in singling out particular combinations but had retained the generic nature of the chemical formula defining the claimed products.

In T.407/10 the board at first concurred with the appellant that, whereas the combination of e.g. two features only originally disclosed in lists of equivalent alternatives was normally found to violate Art. 123(2) EPC, there might be other combinations of features which although not explicitly disclosed in the application as filed were nevertheless derivable from the presence of an (explicit or implicit) pointer thereto. For instance, the fact that certain features were disclosed as preferred in the original application acted as a pointer for the skilled person, as the combination of preferred features was obviously the best way of achieving the technical effects that the invention aimed to provide (see e.g. T.68/99). However, this jurisprudence did not consider the combination of a feature not originally

disclosed as preferred with a plurality of further restrictions based on preferred features as an amendment in accordance with Art. 123(2) EPC.

In T. 775/17, the board (referring to T. 407/10) held that under established case law combining a feature that had not originally been disclosed as preferable with a number of other limitations based on preferred features was not an amendment compatible with Art. 123(2) EPC.

In T. 1799/12 the board considered that the jurisprudence and T. 407/10 correctly referred to further circumstances that need to be taken into account, such as pointers to that selection or combination in the description and in the examples, for instance the fact that the features in question have been mentioned in the description as "preferred". By contrast, in the case at issue, no pointer was available towards the choice of a square or rectangular base wall shape, but there was a clear pointer in the opposite direction, namely towards base wall shapes without any corners ("generally circular" or "oval").

In T. 2273/10 the appellant (patent proprietor) argued that claim 1 was a combination of the invention's most preferred features, and did not involve a selection from various lists. The board disagreed. The application as filed disclosed several possibilities for each of the three features. To arrive at the claimed wording, the skilled person had to make a selection from various lists. In addition these **selections related to preferred and non-preferred features**.

Similarly, in T. 1150/15 the board rejected the proprietor's approach to combine the preferred options for each of the substituents Y, X and Z disclosed on page 75, to disregard the preferred option for R^B disclosed in the same context and to combine it with a definition which has been singled out of the most general list of options for substituent A as arbitrary. The board distinguished its case from the facts underlying T. 615/95 (see chapter II.E.1.6.3 below).

In T. 1259/16 the claimed combination of the features characterising the claimed solution – "free of free bromine" and "less than 100 ppm of metal ion impurities" – was not explicitly disclosed in the application as filed. The board considered that the **lists** relating to free bromine levels and metal ion impurities were **fully independent**. The various levels of free bromine and metal ion impurities represented **equally suitable alternatives**. The skilled person reading the application would not recognise that the lower values were necessarily more preferred, as reducing impurities to as low a level as possible was both impractical and uneconomical. The claimed combination was therefore contrary to Art. 123(2) EPC.

In T. 1476/15 it was held that there was neither an explicit nor an implicit yet direct and unambiguous disclosure in the patent application which indicated that the concentration ranges of the elements in question (polyamines and plant- and yeast-derived protein hydrolysate) had to be read hierarchically and in parallel, where each parallel position in the sequence of five increasingly preferred embodiments of these two lists was combined. Even taking into account the examples, the board could not identify why the specific concentration ranges mentioned in the claim ought to be combined. This conclusion was in line with the view expressed in T. 1511/07.

Similarly, in T.1465/15 the board could see no pointer to the claimed combination (of a preferred range of soy hydrolysate with a target protein to be expressed); no preference for the claimed combination over any of the remaining combinations was derivable from the relevant list of converging alternatives of concentration ranges.

(ii) Combination individualised in application as filed – examples

In T.45/12 the board considered that the specific combination of pioglitazone with glimepiride was singularised in the root application as filed. All through the description of the root application as filed pioglitazone was disclosed as the most preferred sensitivity enhancer to be used in combination with another antidiabetic agent. Glimepiride was one specific antidiabetic agent disclosed for use as second component in the composition. Thus, even assuming that the composition containing pioglitazone with glimepiride would require a selection (among the specific antidiabetic agents disclosed to be combined with pioglitazone), this **one-dimensional selection** did not introduce added subject-matter.

In T.1032/12 the board rejected the appellant's argument that the claimed polypeptide was defined by two features selected from two independent lists. The board considered that, in the case at issue, the protein of SEQ ID NO:2 was singled out as the **particularly preferred polypeptide**, and when reference to fragments as the preferred sequences was made, they were always labelled as "particularly preferred fragments". Therefore, the reference in the description to "the preferred polypeptide" was a reference to the polypeptide of SEQ ID NO:2. It was this specific mention of the full-length molecule as the particularly preferred molecule that distinguished the case at issue from the case underlying decision T.583/09, referred to by the appellant, where different molecules had been presented as equivalent alternatives.

In T.1402/14 the board considered that the situation in the case in hand was different from that in T.1511/07 (see point a) above), where the board had considered that the application as filed did not contain any pointer towards combining two ranges of different level of preference. In the case in hand, the combined ranges were of the **same level of preference** (broadest definition of each range). In the board's view, claim 1 of auxiliary request 1 therefore did not contain any subject-matter extending beyond the content of the application as filed.

T.2723/16 is another decision in which the selection was deemed to have already been disclosed as preferable.

d) Lists of converging alternatives

In T.1621/16 the board observed that it was established case law that, under certain circumstances, amendments based on multiple arbitrary selections from lists represented an extension of the content of the application as filed. However, most decisions following this approach related to amendments based on lists of non-converging alternatives (i.e. mutually exclusive or partially overlapping elements). By contrast, in cases where the amendments were based on selections from lists of converging alternatives (i.e. lists of options ranked from the least to the most preferred, wherein each of the more preferred

alternatives is fully encompassed by all the less preferred and broader options in the list), the conclusions had been less consistent (see T.812/09, T.2237/10, T.27/16 and T.615/95). Moreover, the boards had generally regarded amendments based on multiple deletions of elements from one or several lists of alternatives as an allowable restriction, provided that such amendments did not result in singling out particular combinations of specific meaning (see T.615/95 and G.1/93, OJ 1994, 541). The board considered that selections from lists of converging alternatives should not be treated in the same way as selections from lists of non-converging alternatives for the following reasons: In the case of non-converging alternatives, selecting specific elements from such lists led to a singling out of an invention from among several distinct alternatives, which might provide an unwarranted advantage. On the other hand, when fall-back positions for a feature were described in terms of a list of converging alternatives, each of the narrower elements was fully encompassed by all the preceding less preferred options. Thus, amending a claim by selecting one element from a list of converging alternatives did not lead to a singling out of an invention from among a plurality of distinct options, but simply to a subject-matter based on a more or less restricted version of said feature. There was thus an analogy to deleting options from a list of non-converging alternatives (as in T.615/95). The board emphasised that the above considerations did not allow the conclusion that amendments based on selections from lists of converging alternatives necessarily met the requirements of Art.123(2) EPC. It needed to be assessed whether the specific combination was supported by the content of the application as filed. For the board, at least the following two conditions needed to be met: i) the combination should not be associated with an undisclosed technical contribution; and ii) the combination should be supported by a pointer in the application as filed. Such pointers could be provided by the example(s) (as in T.27/16 and T.615/95) or by specific embodiment(s) of the application, as this/these generally represented the most detailed and preferred form(s) of the invention.

Again in T.1482/17, the same board considered the contested amendments to be compatible with Art.123(2) EPC because the claim in question was based on combinations of more or less preferred options taken from lists of converging alternatives, the resulting subject-matter was not associated with any non-disclosed technical contribution and the original application contained a pointer towards the feature combinations resulting from the multiple selection. In particular, two of the examples in the application fell within the scope of the claimed subject-matter.

In T.1937/17 the respondent (proprietor) argued that the parameter value lists and the list of possible structures in the case in hand were lists of converging alternatives of the kind explained in T.1621/16. Furthermore, the description explicitly linked the features disclosed in these lists in terms of their purpose and effects. This provided a disclosed technical contribution and a pointer, as required by T.1621/16. The board disagreed. It noted that a distinction had to be made between what was possibly rendered obvious to a skilled person in the light of the disclosure with certain pointers, and what was directly and unambiguously, even if implicitly, derivable from the disclosure for the skilled person using common general knowledge. As regards the requirement stated in T.1621/16 that the subject-matter resulting from the combination of convergent options from lists "is not associated with an undisclosed technical contribution", the board, citing G.2/98 (OJ 2001, 413) and G.2/10 (OJ 2012, 376), explained that the distinction in G.1/93

(OJ 1994, 541) had been made explicitly for the addition of undisclosed limiting features limiting the scope of protection and did not provide a criterion for establishing whether or not an amendment extended beyond the content of the application as filed. The board concluded that, other than for the purposes envisaged in G 1/93, a "technical contribution" was of no relevance when deciding on the allowability of amendments under Art. 123(2) EPC. Instead, the gold standard set out in G 2/10 was the only criterion that had to be applied. See also T 1465/15, which, in reply to an argument of the appellant (proprietor) based on T 1253/07 and T 1621/16, likewise highlighted the gold standard (G 2/10).

1.6.3 Deletion of elements from lists – shrinking the lists without singling out a combination of features

According to the boards' consistent case law, the guiding principle is that deleting meanings of residues in a generic chemical formula must not lead to the selection, in the respective lists, of a particular combination of single, specific but originally undisclosed meanings of residues (see T 615/95 and T 859/94).

In T 615/95 there were three independent lists of sizeable length specifying distinct meanings for three residues in a generic chemical formula in a claim. One originally disclosed meaning was deleted from each of the three independent lists. The board stated that the present deletions did not result in singling out a particular combination of specific meanings, i.e. any hitherto not specifically mentioned individual compound or group of compounds, but maintained the remaining subject-matter as a generic group of compounds differing from the original group only by its smaller size. Such a **shrinking of the generic group** of chemical compounds was not objectionable under Art. 123(2) EPC 1973, since these deletions did not lead to a particular combination of specific meanings of the respective residues which was not disclosed originally or, in other words, did not generate another invention. (See also T 948/02, which refers in detail to this case law and which did not allow the amendment of a generic chemical formula. For another decision distinguishing its case from T 615/95, see T 1150/15; see also T 894/05, T 888/08).

In T 50/97 the board explained that in the case at issue the shrinking of the lists of alternative definitions disclosed in the application as filed was not objectionable as that limitation did not result in singling out a particular combination of specific definitions, i.e. a hitherto not specifically mentioned sub-class of compounds, but maintained the remaining subject-matter of claim 1 as generic lists of alternative definitions differing from the original lists only by their smaller size (with reference to T 615/95 and T 859/94).

In T 942/98 the board held that, through the **deletion of all other meanings**, residues X1, X2 and R5 had been narrowed down to a single meaning, leading to a combination of specific meanings of residues not disclosed in the application as filed. Consequently, claim 1 as filed did not in itself provide adequate support for claim 1 as amended (cited by T 2013/08 in connection with the established case law concerning "singling out").